

26STCV02939 26STCV02939

County: los-angeles

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Case Number: 26STCV02939 Hearing Date: August 21, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

ZIJIAN

GUAN,

Plaintiff,

vs.

ENRIQUE
LIZARRAGA,

Defendant.

Case No.:

26STCV02939

Hearing Date:

August 21, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF ZIJIAN

GUAN'S MOTION TO

STRIKE FIRST

AMENDED ANSWER

Background

On July 28, 2026, Plaintiff Zijian Guan ("Plaintiff") filed this action against Defendant Enrique Lizarraga ("Defendant"), alleging four causes of action for (1) breach of contract, (2) specific performance, (3) declaratory relief, and (4) breach of implied covenant of good faith and fair dealing.

On February 26, 2026, Defendant filed an answer to the complaint. On March 19, 2026, Defendant filed an amended answer.

Plaintiff now moves to strike the first amended answer ("FAA") in its entirety. Defendant did not file an opposition. However, Defendant filed another answer on July 29, 2026. The Court notes that under Code of Civil Procedure section 472, subdivision (a), "[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties." Because this is Defendant's second amended answer, Defendant must seek leave from the Court or stipulate with Plaintiff. However, there is no evidence that Plaintiff stipulated allowing Defendant to file a second amended answer. Accordingly, the Court disregards the second amended answer as procedurally improper and strikes it.

Legal Standard

A court may “[s]trikeout any irrelevant, false, or improper matter inserted in any pleading” or “[s]trike out all or any part of any pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subds. (a)-(b).) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” ((Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175, internal quotations omitted.)

Discussion

Plaintiff

moves to strike the FAA on three grounds: (1) it is unverified even though the Complaint is verified, in violation of Cal. Civ. Proc. Code § 446; (2) it does not address the Complaint’s allegations paragraph by paragraph, as Cal. Civ. Proc. Code § 431.30 (d) requires; and (3) it is internally contradictory and therefore does not conform to California law, Cal. Civ. Proc. Code § 436 (b).” (Notice of Mot., 2:11-16.)

Plaintiff

explains a short history. First, “[o]n February 26, 2026, Defendant, Enrique Lizarraga, self-represented, filed an answer on Judicial Council form PLD-C-010. Defendant served Plaintiff with only the proof of service, not the answer itself. Plaintiff obtained a copy by requesting it directly from the Court. The answer checked box 3(a), asserting a general denial of the entire complaint. Two documents accompanied it: ‘Defendant’s Affirmative Defenses (Attachment to Answer)’ and a ‘Declaration of Enrique Lizarraga in Support of

Cancellation of Sale,' both signed under penalty of perjury. Neither document verified the answer. The answer was therefore defective on two grounds: it was unverified despite responding to a verified complaint, and it improperly used a general denial." (Mot., 4:11-23.)

Then,

"[o]n March 10, 2026, Plaintiff sent a detailed meet-and-confer letter via certified mail pursuant to Code of Civil Procedure § 435.5, identifying those defects and requesting that Defendant file a properly verified amended answer by March 15, 2026. Between March 4 and March 23, 2026, Plaintiff's counsel called Defendant twelve times. Defendant answered only one of those calls, on March 23, 2026, at which time he was hostile and nonresponsive. Despite these efforts, Defendant refused to discuss the defects." (Mot., 4:25-5:4.)

Thereafter,

on March 19, 2026, Defendant filed his FAA, which "switched from box 3(a) to box 3(b) on form PLD-C-010, stating that Defendant 'admits that all of the statements of the complaint or cross-complaint are true EXCEPT' as noted. For the exceptions, denials, affirmative defenses, and prayer, the form states only: 'PLEASE SEE ATTACHED DECLARATION AND EXHIBITS.' The FAA also included a one-page MC030 Declaration form stating 'PLEASE SEE ATTACHED DECLARATION,' with a generic under-penalty-of-perjury statement. The attached narrative declaration of Enrique Lizarraga, dated March 14, 2026, recounts Defendant's version of the events and states: 'I am pleading the court to see that I am denying all the plaintiffs allegations because I cancelled selling my home.'" (Mot., 5:5-18.)

Plaintiff

contends that "[w]hile Defendant abandoned the general denial by selecting box 3(b), the FAA remains procedurally defective. It still lacks a proper verification of the Answer itself, its denials are not stated in complaint-responsive form, and it is internally contradictory, simultaneously purporting to admit all allegations while also denying them in their entirety." (Mot., 5:19-24.)

Code of Civil Procedure section 446, subdivision (a), provides, in pertinent part, that "[w]hen the complaint is verified, the answer shall be verified. In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her

information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party... A person verifying a pleading need not swear to the truth or his or her belief in the truth of the matters stated therein but may, instead, assert the truth or his or her belief in the truth of those matters 'under penalty of perjury.'"

Plaintiff

asserts that "[t]he PLD-C-010 form Answer contains no verification. Defendant attached an MC-030 Declaration form that states only 'PLEASE SEE ATTACHED DECLARATION' and includes a generic statement that 'the foregoing is true and correct.' The 'foregoing' in that MC-030 is the phrase 'PLEASE SEE ATTACHED DECLARATION', not the FAA. Defendant's narrative declaration, dated March 14, 2026, does not verify the FAA either. It is a free-form account of his version of events in which he asks the Court to dismiss the case and claims the escrow company owes Plaintiff money. It never states that the contents of the FAA are true of his own knowledge or on information and belief. It does not use the verification language that Code Civ. Proc. § 446 requires." (Mot., 7:16-1.)

On the

declaration attached to the FAA, Plaintiff states, "I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (FAA, Lizarraga Decl.) Below this, Defendant both signs and writes his name. However, as Plaintiff notes, Defendant attests that the foregoing is accurate, but Defendant's actual allegations are posed after the statement. Additionally, Defendant's additional attached declaration, the "1st Amended DECLARATION OF ENRIQUE LIZARRAGA," also states "SIGNED UNDER PENALTY OF PERJURY USING MC-030." (FAA, Lizarraga Supp. Decl., p. 5.) However, Defendant does not sign the declaration, nor does Defendant assert that the foregoing declaration is made under penalty of perjury. Accordingly, Defendant's FAA is not adequately verified.

Code of Civil Procedure section 431.30, subdivision (b)(1), prescribes that "[t]he answer to a complaint shall contain ... [t]he general or specific denial of the material allegations of the complaint controverted by the defendant." In addition, "[i]f the complaint ... is not verified, a general denial is sufficient but only puts in issue the material allegations of the complaint. If the complaint is verified, ... the denial of the allegations shall be made positively or according to the information and belief of the defendant." (Code Civ. Proc., § 431.30, subd. (d).)

Plaintiff

next asserts that “[s]ince Plaintiff’s Complaint is verified, Defendant was required to specifically admit or deny each material allegation, either positively or on information and belief. The answer must address the Complaint paragraph by paragraph, identifying which allegations are admitted, which are denied, and which are denied for lack of sufficient information. Defendant failed to do this. The FAA checks box 3(b) on form PLD-C-010, which states that Defendant ‘admits that all of the statements of the complaint or cross-complaint are true EXCEPT’ as specified. However, the FAA does not specify any exceptions.” (Mot., 8:16-27.) Similarly, Defendant states to review the attached declaration; however, Plaintiff contends that “[t]he attached declaration does not function as a set of denials. It is a narrative account of Defendant’s version of events. It does not identify which allegations he admits, which he denies, and which he denies for lack of information.” (Mot., 9:2-5.)

As

Plaintiff contends, Defendant’s FAA does not specifically admit or deny each material allegation. Rather, Defendant recounts the history of events from his perspective. For example, he asserts that “I told her I no longer wanted to sell my home because I they were doing things behind my back and lying about it and not giving me my documents, I requested to cancel on November 15, 2025...” (FAA, Lizarraga Supp. Decl., 5:4-7.) Defendant does not address the specific causes of action alleged against him in the complaint. Accordingly, Defendant’s allegations are insufficient.

Furthermore,

Plaintiff seeks to strike the FAA as internally contradictory. Plaintiff asserts that “[b]y checking box 3(b) on form PLD-C010, Defendant represents that he ‘admits that all of the statements of the complaint . . . are true EXCEPT’ as specified—without specifying any exceptions. His attached declaration then states: ‘I am denying all the plaintiffs allegations.’ An answer cannot simultaneously admit all allegations and deny all allegations. This contradiction makes it impossible for Plaintiff to determine which allegations Defendant actually contests, defeating the notice function of the pleadings... This internal inconsistency independently warrants striking the FAA under Cal. Civ. Proc. Code § 436(b) as a pleading ‘not drawn or filed in conformity with the laws of this state.’” (Mot., 9:15-10:6.)

As

Plaintiff notes, the FAA denies all allegations while simultaneously admitting all allegations. Thus, it is unclear which defenses Defendant is asserting against Plaintiff, so Plaintiff lacks proper notice of what is admitted and what is denied.

In

summation, Defendant's FAA is not drawn in conformity with the laws of this state, is not adequately verified, and does not properly address the material allegations contained within Plaintiff's complaint. Thus, in light of the foregoing and Defendant's lack of opposition, the Court finds that striking the FAA, as well as the unauthorized Answer filed on July 29, 2026 is proper. Although Defendant did not file an opposition, the Court grants leave to amend, so that Defendant has an opportunity to continue to litigate in this case.

Conclusion

Based on the foregoing, Plaintiff's motion to strike the FAA is GRANTED with leave to amend and the unauthorized Answer filed on July 29, 2026 is stricken. Defendant is ordered to file and serve an amended answer, if any, within 20 days of the date of this Order. If no amended answer is filed within 20 days, the Court orders Plaintiff to request entry of default and to file and serve a proposed default judgment package within 30 days of the date of entry of the default. .

Plaintiff is ordered to give notice of this Order.

DATED: August
21, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court